

8.	26PR0237	IN THE MATTER OF THE BARBARA PIACENTINI TRUST
ESTATE HEARING		

On August 10, 2026, Trustee, Kathryn E. Cain ("Trustee" or "Petitioner"), filed a First Account and Report of Trustee; Petition to Settle Account; to Fix and Allow Trustee and Attorney Fees; and to Discontinue Court Supervision. Proof of service of the notice of hearing was filed on the same date.

Petitioner's first account covers the period beginning May 20, 2024 (the date of the Court's Order establishing the Trust) and ending July 12, 2026, the date of death of the beneficiary. Petitioner advises that based on the assets on hand at the end of the accounting period, the bond amount should be increased to \$1,741,036.52.

Petitioner provides Trustee mistakenly believed the prior Court Order included court approval to pay from the trust accounts reasonable fees and conservator fees on a periodic basis without court approval, subject to court review at the time of the accounting. Under this belief, Trustee paid from the trust what she believed to be reasonable fees for the services provided, totaling \$7,225.50 for June through December 2024, \$11,133.25 for 2025, and \$3,334.50 for January through June 2026.

Petitioner advises that the Trust was created by a Court Order dated May 20, 2024. As the Trust was created and funded on behalf of a conservatee pursuant to court order, it was required to comply with California Rules of Court, Rule 7.903, which includes the requirement that it remain under court supervision, provide accountings, and require trustee and attorney fees be approved by the court prior to payment. Petitioner contends that as conservatee is deceased, the reasons for the court supervision no longer exist.

Petitioner requests the Court order the following:

1. Settling and allowing this account; and ratifying, approving, and confirming all actions and transactions of Petitioner as Trustee as set forth in the report;
2. Directing that the fiduciary bond be increased so that the total of all bonds on file is \$1,741,036.52;
3. Confirming that the fees paid to the Trustee and Conservator from the Trust estate, in the aggregate amount of \$21,693.25 were reasonable for the services performed and are approved;
4. Authorizing Petitioner, as Trustee, to pay from the Trust estate, her attorney Jana Ellerman of Ellerman Strand, the sum of \$5,685.00 for legal services rendered to the Trustee and costs; and
5. Ordering that this Trust not be required to continue under court supervision, and that ongoing court accountings and court approvals for trustee and attorney fees not be required.

TENTATIVE RULING #8:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.